Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1030
Claimant:	Justin Nelson
Adjuster:	Darin Tyler

2023-09-18 - Received first notice of loss from insured. Insured reports vehicle was struck on the driver side while the insured was turning left at an intersection. Insured states the other driver ran a red signal. Police report number pending. No visible injuries reported by insured at scene.

2023-09-27 - Contacted third-party driver. Driver disputes the signal phase and states the insured entered the intersection late. Recorded statement requested. Scene photos obtained from insured and placed in file.

2023-10-04 - Claimant has retained counsel. Attorney letter of representation received. All further contact to be routed through counsel. Claimant reports neck and lower back strain following the collision and has begun treatment. Medical records requested through counsel.

2023-10-05 - Reviewed intersection traffic camera footage obtained from the municipality. Footage partially covers the approach. Signal timing records requested to confirm phase at time of impact. Reserve adjusted to reflect bodily injury exposure pending medical documentation.

2023-10-06 - Counsel's office confirmed receipt of records request and indicated a demand package will follow once treatment concludes. Liability remains disputed. Recommend referral to subrogation unit for recovrey against the ohter carrier. File diary set for follow-up in thirty days.

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Recorded Statement

Claim number:	C-1030
Statement of:	Justin Nelson
Taken by:	Darin Tyler
Date:	2023-09-18

Q: Thank you for agereing to give this recorded statement. Please state your full name for the record.

A: I'd rather not give my name on a recording, but you can use the claim file reference.

Q: That's fine. Can you tell me where you were when the collision happened?

A: I was in Houston, Texas, at an intersection near a shopping center. I was driving my sedan and turning left across the lanes of oncoming traffic.

Q: What was the traffic signal doing when you started your turn?

A: The light had turned yellow when I entered the intersection. I thuoght I had time to clear it, and I was looking for a gap in the oncoming cars.

Q: Did you see the other vehicle before impact?

A: Not really. I saw headlights, but I didn't judge its speed well. It came through and hit the driver's side of my car.

Q: Were you injured?

A: Yes. My lower back hurt right away, and by the next morning it was stiff and sore. I've been seeing a doctor who diagnosed a back strain, and I'm doing physical therapy twice a week.

Q: Are you still having trouble with your back?

A: Yes. Sitting for long periods and lifting anything heavy makes it worse. I've had to miss some work because of it.

Q: Did you speak with anyone at the scene?

A: I gave a short statement to the other driver and to the officer who responded. The officer wrote up a report.

Q: Is there anything else you want to add?

A: Only that I'm willing to cooperate fully and provide my medical records once you send the authorization form.

Q: Thank you. That concludes the statement.